

SENATE BILL 2462

By Bailey

AN ACT to amend Tennessee Code Annotated, Title 4 and
Title 8, relative to district attorneys general.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-7-115, is amended by deleting the section and substituting:

(a) Each district attorney general shall provide an annual report by March 1 of each year to the governor, speaker of the house of representatives, speaker of the senate, chair of the committee of the house of representatives with jurisdiction over subject matters pertaining to district attorneys general, chair of the judiciary committee of the senate, and district attorneys general conference and make such report available to the public upon request. The report must contain, at a minimum, for the previous year, the following aggregate, non-personally identifying information, categorized by offense:

(1) The number of indictments filed;

(2) The number of cases transferred for pro tem prosecution under § 8-7-106; and

(3) The number of each disposition entered by a criminal or circuit court in that district attorney general's judicial district, including dismissals, pretrial diversions, plea agreements, trial outcomes, and sentences imposed.

(b) This section does not require a district attorney general to use any designated system, whether physical or digital, to maintain the data to be reported. A district attorney general may collect the required data in the way that best fits the design of the district attorney general's local criminal justice systems.

(c) It is the duty of the clerk of every court having jurisdiction over misdemeanor and felony cases to provide each district attorney general and the district attorneys general conference direct and unlimited access to the clerk's case management or reporting system for the purposes of complying with the duty to collect, analyze, and report data on the information required by subdivisions (a)(1)-(3). The clerk shall cooperate with each district attorney general and the district attorneys general conference and provide all data and information upon request.

SECTION 2. Tennessee Code Annotated, Section 4-1-425(f), is amended by deleting the subsection and substituting instead the following:

(f) It is the duty of the clerk of every court having jurisdiction over misdemeanor and felony cases to provide the district attorneys general conference direct and unlimited access to the clerk's case management or reporting system for the purposes of complying with the duty to collect and analyze data as required by this section. The clerk shall cooperate with the district attorneys general conference and provide all data and information upon request.

SECTION 3. Tennessee Code Annotated, Section 8-7-314, is amended by redesignating the current section as subsection (a) and adding the following new subsection:

(b) It is the duty of the clerk of every court having jurisdiction over misdemeanor and felony cases to provide the district attorneys general conference direct and unlimited access to the clerk's case management or reporting system for the purposes of complying with the duty to compile a statewide report as required by subsection (a). The clerk shall cooperate with the district attorneys general conference and provide all data and information upon request.

SECTION 4. This act takes effect July 1, 2026, at 12:01 a.m., the public welfare requiring it.